



THE JAMAICA CONSTABULARY FORCE

Management of Body-worn Cameras Policy and Standard Operating Procedures

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1. INTRODUCTION

Over the years, some police-citizen encounters, ranging from routine stop and search to the use of deadly force, have ended in controversy. Many of these incidents have degraded police-citizen relations and sparked negative commentaries on law enforcement. While investigations usually bring some resolution, they are often lengthy and fraught with distrust especially with the absence of video or photographic evidence.

The Jamaica Constabulary Force (JCF) recognizes that still and video recordings from body-worn cameras (BWCs) provide vital evidence add transparency, and increases accountability to the investigative process. Recordings of BWCs can be seen as that ‘built-in impartial witness’ that allows for increased efficiency reliability thereby engendering trust and confidence in the justice process.

In recognition of these benefits the JCF introduced BWC in 2017. The organization has steadily increased the numbers in recent times and will continue greater roll-out over the ensuing years. The policy and standard operating procedures of 2017 is hereby revised to broaden the scope, use and management of BWCs.

2. PURPOSE

This document outlines the JCF’s policy and standard operating procedures for the procurement, issuance, use, care, and maintenance of BWCs, related equipment and accessories as well as the management of BWCs’ recordings.

3. SCOPE

3.1 This policy and standard operating procedures shall apply to all sworn and unsworn members. It covers the procurement, issuance, use, care, maintenance and disposal of BWCs, related equipment and accessories as well as the management of BWCs’ recordings obtained from policing operations.

4. ABBREVIATIONS & ACRONYMS

BWC	Body-worn Camera
CCU	Corporate Communication Unit
CFCU	Communication Forensics and Cybercrime Unit
GoJ	Government of Jamaica
JCF	Jamaica Constabulary Force
PRDB	Planning, Research and Development Branch
SRMS	Station Record Management System

5. DEFINITIONS

For the purpose of this policy and SOP the following definitions are adopted:

- 5.1 **Body-worn Camera (BWC)**
a wearable audio, video and photographic recording system used to record events in which law enforcement officers are involved
- 5.2 **Body-worn Camera (BWC) Administrator**
a member who has been trained and authorized to issue, receive, dock, maintain, and undertake all related duties and responsibilities in each formation as outlined in this policy
- 5.3 **Docking Station**
a compact device that serves as a portable charger for BWCs and facilitates the uploading of footages from the BWC to computer servers
- 5.4 **Footage**
images, videos and audio recorded by the BWC
- 5.5 **Ready-state**
the period in which a BWC is powered-on, affixed to work dress and ready to start recording
- 5.6 **Related equipment and accessories**
all supporting devices including docking station and carrying case

6. RESPONSIBILITIES

- 6.1 The Commissioner of Police will ensure that the JCF is sufficiently equipped with BWCs, related equipment and accessories subject to budgetary provision.
- 6.2 The Deputy Commissioner of Police, Force Development and Logistics Portfolio (FDLP) will ensure the procurement of adequate numbers of BWCs, related equipment and accessories and computer servers for use in the JCF.
- 6.3 The Deputy Commissioner of Police, Strategic Operations will be responsible for determining the distribution of BWCs to formations base on need.
- 6.4 The Deputy Commissioner of Police, FDLP will be responsible for: (a) oversight of the acquisition, inventory, and maintenance of the BWCs and related equipment and accessories within the JCF; (b) participate in developing and ensuring the relevance of the training curricula of all

managers, BWC Administrators and users; and (c) storage, review of, and access to BWC recordings.

- 6.5 The Divisional and Formation Commanders shall be responsible for management of the use, care and storage of all BWCs and related equipment and accessories deployed to their Divisions and Formations, and shall access and review BWC footages for the purpose of monitoring members' performance, enhancing management decisions among others.
- 6.6 The BWC Administrator shall be responsible for the management and accountability of the daily deployment of BWCs and related equipment and accessories.
- 6.7 BWC users shall be responsible for the effective use, care and handling of BWCs and related equipment and accessories.

7. POLICY STATEMENTS

It is the policy of the JCF that:

- 7.1 BWCs, related equipment and accessories shall be used to support the management of policing operations particularly those where members are required to interact with the public; notably, this excludes those interactions of members working in courtrooms or other areas of confidential or administrative settings;
- 7.2 the management of BWCs and related recordings shall incorporate the Constitution of Jamaica, all relevant local laws, the Jamaica Constabulary Force's Human Rights and Police Use of Force and Firearms, Ethics and Integrity and Police Public Interaction Policies and Standard Operating Procedures;
- 7.3 as far as is practicable, members equipped with BWCs shall activate the device in order to record all interactions with the public for the proper performance of their official duties and where it is consistent with this policy and the law;
- 7.4 BWCs shall be used to enhance transparency, safeguard members and citizens' rights and support the administration of justice and fairness;
- 7.5 only trained, and authorised members shall be issued with, and use BWCs, related equipment and accessories;

- 7.6 the BWCs and related equipment, footage (i.e. images, videos, and audio) recorded, or otherwise produced from the device shall be the property of the JCF;
- 7.7 only persons or entities with appropriate authorization shall be given access to BWCs' recordings; and
- 7.8 failure, neglect or refusal of members to use and care BWCs, related equipment or accessories, or to manage the recordings in accordance with this policy and standard operating procedures may result in disciplinary action.

8. STANDARD OPERATING PROCEDURES

The management of all BWCs and related equipment and accessories shall be in accordance with the following:

8.1 Acquisition

The acquisition of BWCs and related equipment and accessories shall be in accordance with the GoJ procurement guidelines.

8.2 Distribution

- i. The BWCs and related equipment and accessories shall be distributed to divisions and formations on the direction of the Deputy Commissioner of Police, Strategic Operations in collaboration with the Assistant Commissioner of Police, Technology Branch.
- ii. An inventory showing divisions and formations to which BWCs and related equipment and accessories are distributed shall be managed by the Assistant Commissioner of Police, Services Branch.

8.3 Issuing and Receiving

The BWC Administrator shall be responsible for the issue and retrieval of BWCs and related equipment and accessories to and from personnel, and shall ensure that:

8.3.1 prior to issue:

- i. the BWC is in proper working order, battery fully charged and where applicable, current date and time are displayed.

8.3.2 Upon issue:

- i. an entry is made in the Station Diary or Station Record Management System (SRMS) recording the name of the receiving officer, nature of duty, time issued, patrol zone, serial number, battery status and physical condition of BWC;

- ii. an entry is made in the BWC Register recording the date and time issued, serial number of BWC and particulars of the receiving officer;
- iii. the receiving officer signs the BWC Register; and
- iv. he/she signs the appropriate section in the BWC Register.

8.3.3 On receipt of the BWC, the receiving officer shall:

- i. conduct a function test;
- ii. report any malfunction noticed to the BWC Administrator;
- iii. review entry in the BWC Register;
- iv. sign the appropriate section in the BWC Register; and
- v. ensure the safety and care of the device while in his/her possession.

8.4 Use of the BWC

Members are required to wear the BWC on their person during work and shall:

- 8.4.1 on receipt, securely affix the BWC in the prescribed manner on their work dress in a location where frontal optimum viewing and recording will occur;
- 8.4.2 power-on the BWC and have it in the ready-state upon commencement and throughout the tour of duty;
- 8.4.3 activate the BWC to record interactions with citizens in the performance of duties. ***If a member fails to activate the BWC, or interrupts the recording, the member shall submit written report outlining the reasons and may face disciplinary action for any breach detected;***
- 8.4.4 inform individuals in the interaction that they are being recorded unless it is not practicable so to do;
- 8.4.5 keep the BWC activated until the activity or interaction has concluded or where the member is satisfied that no further information can be gleaned from the interaction;
- 8.4.6 ensure that the BWCs are on when activated when required; and
- 8.4.7 in situations of sudden and imminent threat where officer safety is at stake, activate the BWC as soon as is practicable. ***The member is not expected to jeopardize his/her safety in order to activate the BWC but must make every effort to commence recording as soon as it is safe to do so (a written report outlining the circumstances will be required).***

8.5 Restrictions on Use

The BWC shall not be used to record the following:

- 8.5.1 casual conversations with other police personnel, unless the recording is authorized as part of an administrative or criminal investigation;
- 8.5.2 encounters with undercover members or confidential informants;
- 8.5.3 when on break or otherwise engaged in personal activities; or
- 8.5.4 in locations where individuals have a reasonable expectation of privacy, such as restrooms, locker rooms and hospital wards.

Where the BWC was activated and is about to be stopped due to any of the foregoing reasons, the member should verbally note on the recording why the recording will be stopped and also make a formal report on conclusion of duty.

8.6 Handing Over and Receiving

Upon the completion of duty:

8.6.1 the member shall:

8.6.1.1 hand over the BWC to the BWC Administrator sign the BWC Register; and

8.6.1.2 make a formal report to the BWC Administrator on:

- i. all incident(s) that resulted in the activation of the BWC during the tour of duty;
- ii. the likelihood of complaints, court action or further investigation of any incident that were recorded on the BWC during the tour of duty;
- iii. any incidents that warranted the use of BWC but the device was not used; and
- iv. any malfunction, failure or any incident of potential damage to the BWC.

8.6.2 On receipt of the BWC from the member, the BWC Administrator shall:

8.6.2.2 inspect the device;

8.6.2.3 make the relevant entries in the Station Diary or SRMS and BWC Register;

8.6.2.4 dock the BWC in order to charge the device and upload the recordings; and

8.6.2.5 where a BWC malfunctions or was damaged, make an entry regarding the circumstances in the Station Diary or SRMS and the BWC Register, submit report to Technology Branch and conduct an investigation. *Where the BWC and any of its related equipment or accessories have been damaged, lost, destroyed, stolen or otherwise unaccounted for, the BWC Administrator shall make an entry regarding the circumstances in the Station Diary or SRMS and the BWC Register, conduct an investigation and submit a report to Technology Branch.*

8.7 Handling, Storage and Retention of Recordings

For effective management, storage and retention of recordings, the following shall apply:

- 8.7.1 The Assistant Commissioner of Police Technology Branch shall be the custodian of all BWC recordings.
- 8.7.2 Retention and handling of recordings from the BWC shall be in keeping with the Evidence (Amendment) Act, 2015; Data Protection Act, 2020; JCF's Use of Digital Media in Criminal Investigations Policy; CFCU Standard Operating Procedures; and other relevant policies and guidelines.
- 8.7.3 Recordings from BWC shall be kept by ACP Technology Branch for up to ninety (90) days before consideration for deletion.
- 8.7.4 Where footages are required for evidentiary, administrative or training purposes, request for retention and retrieval shall be made within ninety (90) days from the date of upload. Requests may be made by a commanding officer, crime officer, investigating officer, IPROB, INDECOM or any other person or body with investigative or adjudicative power, authority or function.

8.8 Access to Recordings

Commanding officers, crime officers, investigating officers, IPROB, INDECOM or any other person or body with investigative or adjudicative power, authority or function may be granted access to BWC recordings. Additionally, members who are subject of BWC recordings may be granted access to such recordings. In order to access BWC recordings, the following shall apply:

- 8.8.1 Assistant Commissioner of Police, Technology Branch or his designee shall create user accounts and authorize different levels of access to BWC footages; and cause a record to be kept of all persons who access recordings.
- 8.8.2 Commanding Officers shall have access to view BWC recordings of interactions in their areas of command for the purpose of investigations and management of personnel and operations. This is to *inter alia* implement preventative and corrective actions guided by best practices.
- 8.8.3 A member may be granted access by his or her Commanding Officer, to view footage(s) of which he or she is the subject of recordings provided that there is no investigation in which the member is a suspect.
- 8.8.4 An investigator shall be granted access to review relevant footage(s) with the authorization of his or her Commanding Officer.
- 8.8.5 Where a copy of the BWC footage is required for criminal investigation, the investigating officer shall submit an application with the requisite justification to his or her Crime Officer. Upon review, the Crime Officer will forward this application along with his or her recommendation to the ACP Technology Branch for release of the footage.
- 8.8.6 Upon receipt of the request, the ACP Technology Branch or his designee shall submit the relevant footage along with a system statement.
- 8.9** Where a copy of the BWC footage is required for administrative investigation, the investigating officer shall submit an application with the requisite justification to his or her Administrative Officer. Upon review, the Administrative Officer will forward this application along with his or her recommendation to the ACP Technology Branch for release of the footage.
 - 8.9.1 Upon receipt of the request, the ACP Technology Branch or his designee shall submit the relevant footage along with a system statement.
 - 8.9.2 Where a copy of the BWC footage is required for training purposes, the ACP Training may make the appropriate request to the ACP Technology Branch.

- 8.9.3 Upon receipt of the request from ACP Training Branch, the ACP Technology Branch or his designee shall review the footage in consultation with the appropriate Commanding Officer, and where the release is not likely to compromise any investigation or adversely impact the dignity or human rights of others, release all or part of the requested footage.
- 8.9.4 Access to BWC recordings for the purposes of court and/or investigation shall be in keeping with the Access to Information Act, 2004; Evidence (Amendment) Act, 2015; Data Protection Act, 2020; JCF's Use of Digital Media in Criminal Investigations Policy; CFCU Standard Operating Procedures; and/or other relevant policies and guidelines.
- 8.9.5 Access to BWC recordings by external oversight or investigative bodies shall be granted in keeping with relevant legislation and protocols where exist.
- 8.9.6 All other access to BWC recordings must be authorized by the Commissioner of Police or his designee, and request for such access must be coordinated through the Corporate Communication Unit (CCU).
- 8.9.7 Except where stipulated by law, release of BWC recordings to the public must be under circumstances where it will not compromise investigations.
- 8.9.8 Public release of BWC recordings shall be with due regards to the safety of member(s), privacy of unconnected persons and due process of law.
- 8.9.9 Where a decision is taken to release BWC recordings to the public, where appropriate, the footage must be edited in order to conceal the identity of members, suspects, victims or any bystander, as also to preserve the dignity, respect and human rights of persons.

8.10 Security and Storage

In order to ensure the proper security and storage of BWCs, the following shall apply:

- 8.10.1 BWCs shall be stored in accordance with their manufacturers' instructions.

8.10.2 During periods when the BWCs are not in use, they shall be placed in docking stations. The designated BWC Administrator for each shift shall be responsible for their safe custody.

8.11 Accountability for BWC

For proper accountability of BWCs, the following shall apply:

8.11.1 A master inventory of the Force's stock of BWCs will be maintained at the Technology Branch and a local inventory kept at each division or formation to which BWCs are assigned.

8.11.2 The BWC Register (see **Appendix 2**) shall be used to record the issue, receipt and hand-over of each device at the respective station or location.

8.11.3 The Station Diary or SRMS shall be used to record the movement of all BWCs, related equipment and accessories.

8.11.4 If any part of the BWC, related equipment and accessories, are lost or damaged, the member must immediately notify his/her supervisor and the BWC Administrator and submit a report outlining the circumstances.

8.11.5 It shall be the responsibility of the assigned member to ensure that the BWC is operated and maintained according to the manufacturer's instructions and this policy and standard operating procedures.

8.11.6 Members shall be responsible for the safe custody of BWCs issued to them, and may be held liable for any loss or damage.

8.12 Disposal:

8.12.1 Where BWCs, related equipment and accessories have become obsolete or are no longer functional, they shall be handed over to ACP Technology Branch.

8.12.2 ACP Technology Branch or his designee shall dispose of such devices in accordance with the guidelines of the GoJ Comprehensive Asset Management Policy for the Public Sector, 2020.

9. LEGISLATIVE AUTHORITY

This policy is in keeping with provisions contained in the Constitution of Jamaica and the following legislations and guiding principles:

- [Data Protection Act, 2020ⁱⁱ](#)
- [The Law Reform \(Zones of Special Operations\) \(Special Security and Community Development Measures\) Act, 2017ⁱⁱⁱ](#)
- [Evidence \(Amendment\) Act, 2015^{iv}](#)
- [Access to Information Act, 2004^v](#)
- [Evidence Act, 1997^{vi}](#)
- Jamaica Constabulary Force Police Public Interaction Policy
- Jamaica Constabulary Force Ethics and Integrity Policy
- Jamaica Constabulary Force Human Rights and Police Use of Force and Firearms Policy
- Jamaica Constabulary Force Use of Digital Media in Criminal Investigations Policy

10. RELEVANT RECORDS AND FORMS

10.1 Station Diary/SRMS

10.2 BWC Register

11. ROLES AND FUNCTIONS

11.1 Commanding Officer

The Commanding Officer for each Division or Formation shall ensure that:

11.1.1 inventory and management of the BWCs and related equipment and accessories are consistent with Force Policies and SOPs;

11.1.2 adequate numbers of BWC Administrators are selected and trained for attachment at respective stations to which the BWCs are assigned;

11.1.3 only members trained in the use and care of BWCs are issued;

11.1.4 authorized access to recordings is granted to selected members under his/her command in collaboration with ACP Technology Branch;

- 11.1.5 members equipped with BWCs utilize them in accordance with this policy and SOP;
- 11.1.6 periodic review of BWC footages of members under his/her command is conducted for the purposes of investigation and proper management of personnel or operations, and to implement preventative and corrective actions guided by Force policies and best practices;
- 11.1.7 members are held accountable for any breach of this policy and institute the appropriate disciplinary actions; and
- 11.1.8 monthly inspections of the BWCs related equipment and accessories assigned to his/her Division or Formation are conducted.

11.2 BWC Administrator

The BWC Administrator shall be responsible for:

- 11.2.1 management of the deployment of the BWCs to include their issue, retrieval, docking (charging and uploading of recordings) and monitoring of their physical condition. This includes the completion of the Issuing/Receiving Checklist (see **Appendix 1**);
- 11.2.2 the administrative process of accountability for each BWC, related equipment and accessories. This must include *inter alia*, the documentation of their movement and the timely submission of related reports; and
- 11.2.3 in the event there is an error notification on the device, contact Technology Branch after basic troubleshooting.

11.3 Assistant Commissioner of Police, Technology Branch

The Assistant Commissioner of Police, Technology Branch shall:

- 11.3.1 manage the acquisition, inventory, deployment and maintenance of all BWCs, related equipment and accessories and servers island wide;
- 11.3.2 deliver training in the use, care and operation of the BWC as well as to upload footages from the device;
- 11.3.3 access, retrieve and back-up data files from the BWC server;
- 11.3.4 be the custodian of footages retrieved from the BWC

11.3.5 extract footages to the appropriate media on behalf of the Commissioner of Police when so directed;

11.3.6 conduct periodic review of systems and processes and inspect BWCs, related equipment and accessories in order to ensure quality and relevance; and

11.3.7 institute the necessary arrangements for the maintenance and care of BWCs, related equipment and accessories in keeping with their manufacturers' guide.

11.4 Assistant Commissioner of Police, Planning, Research and Development Branch

The Assistant Commissioner of Police, PRDB shall:

11.4.1 conduct biennial review of the policy in accordance with legislative and/or operational changes and best practices or as may become necessary; and

11.4.2 provide periodic strategic assessment and engage internal and external stakeholders on pertinent findings and report accordingly.

Appendix 1: Issuing/Receiving Checklist

Cons. #	BWC Procedures	Yes	No
1.	Member was trained to use BWC		
2.	BWC in proper working order		
	Battery fully charged		
	Current date and time are displayed		
3.	Entry in Station Diary/SRMS (recording the name of the receiving officer, nature of duty; time issued, patrol zone, serial number, battery status and physical condition)		
4	Entry in BWC Register (recording date and time issued, serial number of BWC and the particulars of the receiving officer)		
5	Function test (Receiving Officer)		
	Malfunction observed		
	Malfunction reported to BWC Administrator		
6	Check/review entry in the BWC Register		
7	Receiving Officer signs BWC Register		

[illegible]

Notes:

ⁱ Chapter III provides for right to dignity and privacy

Section 13 – 1 (a) *the state has an obligation to promote universal respect for, and observance of human rights and freedoms.*

(b) *all persons in Jamaica are entitled to preserve for themselves and future generations the fundamental rights and freedoms to which they are entitled to by virtue of their inherent dignity as persons and as citizens of a free and democratic society; and*

(c) *all persons are under a responsibility to respect and uphold the rights of others.*

ⁱⁱ The Data Protection Act, 2020 recognizes the need to strengthen the protection of personal data and protect personal data from abuse. JCF collects personal data through various means (including BWCs) and therefore has a duty to preserve people's data. This act covers *inter alia* the manner in which any personal data are to be processed, and where personal data are processed only for purposes for which they are required. It also covers who has the Rights of Access to such data, exemptions and limitations to access, extent to which data is supplied without compromising confidentiality and the data protection standards to be adhered to under law.

ⁱⁱⁱ Section 19 of the Law Reform (Zones of Special Operations) (Special Security and Community Development Measures) Act, 2017 *allows for the use of body-worn cameras by Joint Force when conducting operations within the zones. It also allows for the Commissioner of Police to establish and review protocols and procedures for their use.*

^{iv} Evidence (Amendment) Act, 2015 broadens the definition of 'document' to incorporate *inter alia* the use of video evidence in court proceedings.

^v Access to Information Act, 2004 gives the general public access to information. The objects of this Act are to *"reinforce and give further effect to certain fundamental principles underlying the system of constitutional democracy namely; i) governmental accountability, ii) transparency and iii) public participation in national decision-making, by granting to the public a general right of access to official documents held by public authorities, subject to exemptions..."*

^{vi} Evidence Act, 1997 allows for the admissibility of evidence and chain of custody.

The Act Part, 1A treats with hearsay and computer-generated evidence has defined documents in Sec (31B) (c) to include "any disc, tape, sound track or other device in which sounds or other data"

Whilst (31B) (d) further define document to include "any film (including micro film), negative, tape or other device in which one or more visual images are embodied so as to be capable (with or without the aid of some other equipment) of being reproduced there from"

The Act makes provision for the admission of such evidence in court provided that the conditions in subsection (2) of 31C are adhered to, where the person making the statement affixes his/her signature, notice of intention to tender statement/document is served within 21 days on all other parties before the hearing, the notice is accompanied by a declaration from the statement maker.